

		determination regarding the amount that Defendants Don and Lynn Southard and Rob McPherson are to reimburse Western Tap for unauthorized distributions of money and unauthorized payments of their personal expenses. <u>Any such monies should be deducted from distributions payable to any of the Defendants, including from proceeds from the sale of the Dale Street Property</u> (October 8, 2024 Judgment, emphasis added.) Moreover, prior to the conveyance, “pending the decision of the Court of appeal.....counsel for Plaintiff in the Lawsuit advised counsel for the Southards that....no alienation of the property should occur before the Plaintiff’s appeal was resolved.” (Compl. ¶ 46.) Thus, whether the original Judgment or the Judgment after Trial and Post-Appeal was in effect, both contemplated a lien on the property. Defendant has not shown that the statute of limitations has run on any of the claims on demurrer. Thus, the Motion is overruled.
10	Mohan vs. USC Developers LLC 2026-01562032	Motion to Expunge Mechanics Lien Off Calendar
11	Nguyen vs. Gonzales 2024-01374578	Demurrer to Amended Complaint Defendant Gallagher Bassett Services, Inc.’s demurrer to Plaintiff Peter Nguyen’s Second Amended Complaint is sustained. The Court takes judicial notice of Plaintiff’s First Amended Complaint (ROA 13) on its own motion. (See <i>Holland v. Morse Diesel Intern., Inc.</i> (2001) 86 Cal.App.4th 1443, 1447–1448.) A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and